

HOUSE BILL 1769

By Clemmons

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 49; Title 39 and Title 49, relative to
student athletes.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as "The Intercollegiate Student-Athlete Protection Act."

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 17, Part 3, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Communicate" means the same as defined in § 39-17-308;

(2) "Cyber-bullying" means sports-related bullying undertaken through the use of electronic devices;

(3) "Electronic communications service" means the same as defined in § 39-17-308;

(4) "Emotional distress" means the same as defined in § 39-17-315;

(5) "Intercollegiate sport" means the same as defined in § 49-7-2102;

(6) "Sports-related bullying" means aggressive and unwanted behavior directed toward a student athlete in relation to the performance of the student athlete in an intercollegiate sport that:

(A) Is intended to harm, intimidate, or humiliate the student athlete;

(B) Is repeated over time; and

(C) Causes the student athlete to suffer emotional distress; and

(7) "Student athlete" means the same as defined in § 49-7-2102.

(b) A person commits the offense of student athlete harassment who intentionally:

(1) Communicates a threat to a student athlete that is related to the performance of the student athlete in an intercollegiate sport, and the person communicating the threat:

(A) Intends the communication to be a threat of harm to the student athlete or the student athlete's immediate family; and

(B) A reasonable person would perceive the communication to be a threat of harm; or

(2) Engages in sports-related bullying or cyber-bullying of a student athlete related to the performance of the student athlete in an intercollegiate sport.

(c)

(1) A first violation of subsection (b) is a Class A misdemeanor.

(2) A second or subsequent violation of subsection (b) is a Class E felony.

(d)

(1) The offense described in this section does not apply to an entity providing an electronic communications service to the public acting in the normal course of providing that service.

(2) A service provider described in this subsection (d) is not required to maintain any record not otherwise kept in the ordinary course of that service provider's business; except that if an electronic communications service provider operates a website that offers a social network service and the electronic

communications service provider provides services to consumers in this state, then any log files and images or communications that have been sent, posted, or displayed on the social network service's website and maintained by the electronic communications service provider must be disclosed to a governmental entity responsible for enforcing this section only if the governmental entity:

- (A) Obtains a warrant issued using this state's warrant procedures by a court of competent jurisdiction;
- (B) Obtains a court order for the disclosure under subdivision (d)(4); or
- (C) Has the consent of the person who sent, posted, or displayed any log files and images or communications on the social network service's website maintained by the electronic communications service provider.

(3) A cause of action does not lie in any court against any provider of an electronic communications service, its officers, employees, agents, or other specified persons for providing information, facilities, or assistance in accordance with the terms of a court order or warrant.

(4) A court order for disclosure under subdivision (d)(2)(B) may be issued by any court that is a court of competent jurisdiction and must issue only if the governmental entity offers specific and articulable facts showing that there are reasonable grounds to believe that the contents of an electronic communication, or the records or other information sought, are relevant and material to an ongoing criminal investigation. A court order must not issue if prohibited by the law of this state. A court issuing an order pursuant to this section, on a motion made promptly by the service provider, may quash or modify the order, if the

information or records requested are unusually voluminous in nature or compliance with the order otherwise would cause an undue burden on the provider.

(e)

(1) A student athlete who is the victim of a violation of this section has a private right of action against the person convicted of violating this section.

(2) A court may award a student athlete who prevails in an action under this subsection (e):

(A) A minimum of seventy-five thousand dollars (\$75,000) in statutory damages per intentional violation of subsection (b);

(B) Actual damages;

(C) Punitive damages, pursuant to § 29-39-104;

(D) Other forms of equitable relief; and

(E) Reasonable costs and attorney fees.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.